

Court No. - 29

Case :- WRIT - C No. - 27282 of 2019

Petitioner :- Adhyaksh Kargil Shahid Mahavidyalaya

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Srivastava, Archana Srivastava

Counsel for Respondent :- C.S.C., Archana Srivastava

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent No.2.

The petitioner is having an electric connection No. 130437. In respect of the said electric connection, a bill for the month of April, 2016 with arrears was raised for a sum of Rs. 1,72,179/-. This bill was challenged by the petitioner by filing a complaint under Section 12 of the Consumer Protection Act before the District Consumer Forum, Etawah.

Now, a recovery citation dated 13.04.2018 has been issued to recover Rs. 1,25,000/- as the electricity dues. This citation has been challenged by the petitioner by means of present petition.

The aforesaid recovery is in respect of electricity dues and as such is consequential to the demand of electricity dues raised against the petitioner.

In the event, the petitioner alleges that the aforesaid demand is based upon incorrect electricity bills, the remedy of the petitioner is to get the bills rectified by taking recourse to clause 6.5 of the U.P. Electricity Supply Code, 2005 by moving appropriate application before the Executive Engineer.

The petitioner cannot be permitted to challenge the recovery citation independently until and unless the very foundation of the said recovery is assailed by him.

In view of the aforesaid facts and circumstances, we do not deem it necessary to exercise our discretionary jurisdiction in the matter and the writ petition is **disposed off** with the liberty as aforesaid.

Order Date :- 12.9.2019

Nirmal Sinha